

enforcement close to a trial date (no trial date has been set and the next CMC is not scheduled until August 3, 2026). Defendants did not attempt to take advantage of judicial discovery procedures unavailable in arbitration as their participation was limited to responding to Plaintiff's discovery and complying with a court order. Although Defendants demanded arbitration approximately ten months after appearing, that alone is not dispositive. Defendants invoked arbitration on October 7, 2025, agreed to JAMS on October 17, 2025 and drafted a stipulation memorializing that agreement, then filed this motion approximately two months after Plaintiff would not stipulate.

Proof by clear and convincing evidence is "a heavy burden, far in excess of the preponderance sufficient for most civil litigation." (*Christian Research Institute v. Alnor* (2007) 148 Cal.App.4th 71, 84.) The California Supreme Court has stated, "doubtful cases will be decided against a waiver." (*Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 31.)

The Court does not find waiver by clear and convincing evidence on this record.

Forum

If the Court does not find waiver, Plaintiff requests that the matter be ordered to arbitration before JAMS. (Opp. at p. 8.) Although Defendants' Reply does not address the request, the Court finds JAMS to be the appropriate forum for two reasons. First, the arbitration agreement itself permits the customer to choose the arbitration organization, identifying AAA and JAMS as pre-approved options. (Hafstad Decl., Ex. A, ¶ F, at p. 9.) Plaintiff has selected JAMS, and the contract authorizes that selection.

Second, the parties previously agreed to JAMS during their pre-motion stipulation discussions. When Plaintiff inquired on October 17, 2025 whether Cardigan would arbitrate before JAMS, Cardigan's counsel responded the same day that Defendants were "amenable to JAMS." (Stearns Decl., Exh. B.) Cardigan thereafter drafted and transmitted a stipulation memorializing that agreement. (*Id.*, Exhs. C–D.) The Court will therefore order arbitration to proceed before JAMS.

Order

For the foregoing reasons, the motion is **granted**. The parties shall submit to binding arbitration before JAMS. The action is stayed pending completion of the arbitration, except that the Court sets an arbitration status conference on **November 12, 2026 at 8:30 a.m. in Department 16**. The parties are ordered to file a joint status report no later than **October 20, 2026**.

15. 9:00 AM CASE NUMBER: C24-02810
CASE NAME: DOMINGA ELEANOR ULIBARRY JIMENEZ VS. TERRICE WARREN
***HEARING ON MOTION IN RE: ORDER IMPOSING SANCTIONS**
FILED BY: ULIBARRY JIMENEZ, DOMINGA ELEANOR
TENTATIVE RULING:

Summary

Plaintiff Dominga Eleanor Ulibarry Jimenez Motion for an order imposing issue sanctions and evidence

sanctions against Defendant Terrrice Warren, and imposing a monetary sanction in the amount of \$2,450 against defendant, for failure to obey the order of this court dated October 29, 2025, compelling responses to plaintiff's special interrogatories, requests for admissions, and demand for production of documents, is unopposed. As such, the Motion is granted.

The Court will execute the proposed order lodged by Plaintiff's counsel on December 18, 2025. No appearance is required at the hearing on May 6, 2026.

16. 9:00 AM CASE NUMBER: C24-03036
CASE NAME: ARLENE ROSITA MUNOZ, AN INDIVIDUAL AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATE VS. SHIV RESORT, INC., A CALIFORNIA CORPORATION
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: SHIV RESORT, INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is a motion to compel arbitration filed by defendant Shiv Resort, Inc. doing business as Bridges Golf Club. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Arlene Munoz was employed by defendant Shiv Resort doing business as Bridges Golf Club ("Bridges" for convenience) from September 2022 to January 2024. She was a non-exempt, hourly employee. She filed her complaint initiating this action on November 12, 2024 and filed the operative first amended complaint ("FAC") on March 27, 2025. The FAC alleges a number of causes of action for violation of the Labor Code and other wage and hour laws. Plaintiff asserts claims individually, as a putative class representative, and as an "aggrieved employee" under the Private Attorney General Act, Labor Code section 2698 *et seq.* ("PAGA").

Plaintiff first served Bridges by serving Bridges with the FAC by a notice and acknowledgement of receipt dated April 9, 2025, which shows counsel for Bridges signed on April 29, 2025. Bridges filed an answer to the FAC on May 29, 2025, asserting as its fifteenth affirmative defense the existence of an arbitration agreement that required Plaintiff's claims to be resolved by binding arbitration. (Khakh Decl. Exh. A.) Bridges filed a CMC statement on June 9, 2025 which asserted arbitration as an applicable method of alternative dispute resolution and stated Bridges' intention to file a motion to compel arbitration. (6/9/2025 CMC Stmt. pp. 3, 4.)

The Court held another case management conference on September 19, 2025. (Khakh Decl. ¶ 6.) A stay of discovery was in effect, and the minute order from that CMC conference provides that if the motion to compel arbitration was not filed within seven days of the September 19, 2025 CMC, the stay of discovery would be lifted "WITH PROVISIONS," stating "THE PROVISION IS WHEN THE MOTION GETS FILED TO COMPEL ARBITRATION THE DISCOVERY WILL BE STAYED REGARDING THE ISSUES RAISED." (Khakh Decl. Exh. B.) When the discovery stay was lifted, Plaintiff propounded a series of written discovery requests to Bridges, to which Bridges responded before the discovery stay was reimposed when Bridges filed its motion to compel arbitration. (Khakh Decl. ¶¶ 7, 8.)

Bridges filed its motion to compel arbitration on November 21, 2025. The motion was originally set for May 28, 2026 in Department 39. On January 2, 2026, Bridges substituted new counsel, and in March 2026, this case was reassigned to Department 16. The motion to compel arbitration was reset to be heard on May 6, 2026 in Department 16.